



**LIMITED-SOURCES JUSTIFICATION
ORDERS OR BPAS EXCEEDING THE SIMPLIFIED ACQUISITION THRESHOLD
J&A-25-0018**

This acquisition is conducted under the authority of the Multiple-Award Schedule Program, 41 U.S.C. 152(3), Competitive Procedures, and 40 U.S.C. 501, Services for Executive Agencies.

1. Agency and Contracting Activity.

The Department of Homeland Security (DHS), U.S. Immigration and Customs Enforcement (ICE), Office of Acquisition Management (OAQ) proposes to issue a modification to task order 70CTD023FR0000095 issued against General Services Administration (GSA) contract 47QTCA18D00BZ on behalf of the Office of the Chief Information Officer (OCIO) in support of the Office of the Principal Legal Advisor (OPLA) pursuant to FAR 8.405-6(a), Limiting Sources.

2. Nature and/or description of the action being approved.

- (a) Type of action: Firm-Fixed Price Contract
- (b) Amount the current J&A is justifying: \$2,812,500.00
- (c) Brief Description: ICE/OAQ intends to modify task order 70CTD023FR0000095, on a sole source basis, to increase optional active storage for eDiscovery (eDS) Software as a Service (SaaS). The additional optional Contract Line-Item Numbers (CLINs) are added to provide the agency with flexibility to utilize additional optional storage CLINs should the need arise.

Vendor:
Casepoint, LLC (UEI: NNBKLLXPY4L6)
7900 Tysons One Pl Ste 680
Tysons, VA 22102-5971

3. Description of Supplies/Services.

ICE previously procured an eDiscovery SaaS solution from Casepoint, LLC under task order 70CTD023FR0000095 using competitive procedures against the Federal Supply Schedules. eDiscovery provides a cloud-based, FedRAMP-authorized SaaS solution that enables government legal, Information Technology (IT), compliance, and investigative teams the ability to seamlessly identify, preserve, collect, review, and produce data—helping them minimize risk and meet mission needs during litigation. During the pre-award market research phase in 2022, OPLA estimated approximately 56 terabytes (TB) of active storage per year would be required to handle future litigation. Since award, OPLA has realized a higher than expected volume of litigation data due to ICE's increased enforcement priorities which have consumed a large portion of existing storage capacity.



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Within a year from award of the task order, data consumption exceeded the amount of active storage that was initially purchased. Additional active storage of 24 TB was purchased in fiscal year 2024 via a modification and explained further in the table note below. The current storage data totals in the task order are 94 TB Active Storage (with 54 TB Inactive Storage, 88 TB Staging Data, and 27 TB for Exported Data).

In anticipation of a significant increase of enforcement and ensuing litigation, OPLA is requesting a modification to the task order to allow for an additional 30 TB of storage per year from option period 1 through option period 4 for a total potential of 100 TB per year to comply with the agency's discovery obligations. No immediate purchases are anticipated; however, the ability to quickly execute options to meet agency needs affords the agency greater flexibility during increased litigation and to be able to timely comply with discovery obligations during litigation.

ICE's estimate of 100 TB per year is based on a clear trend of increased storage needs driven by enforcement actions and litigation. Over the past two years, data consumption has grown significantly, exceeding the original 56 TB allocation much faster than expected. In fiscal year (FY) 2023 alone original storage limits were hit requiring an emergency increase of 24 TB in FY 2024 to prevent disruptions. This is not a one-off issue as it reflects a larger ongoing trend as enforcement priorities expand and digital discovery requirements grow. Adding 30 TB per year is practical to meet the current storage requirements and forward-thinking realignment that will prevent repeated modifications which could lead to operational slowdowns and increased costs. By addressing this now OPLA ensures seamless compliance with legal requirements while maintaining efficiency and continuity in litigation support. This modification is a necessary immediate measure to keep ICE in compliance with court-mandated discovery obligations while ICE works toward a future recompute of the requirement.

The proposed modification will provide additional optional CLINs that can be exercised to increase the amount of active storage in the Casepoint SaaS platform. The additional storage would provide the agency the ability to meet its electronic discovery obligations during litigations. [REDACTED]

[REDACTED] with Staging and Exported Data included for each CLIN.

	Period of Performance	Initial Contract Value	Prior Modification Increases	Proposed Modification	Cumulative Total Value
Base Period	11/15/2023-11/14/2024	\$1,614,000.00	\$890,000.00	-	\$2,504,000.00
Option Year 1	11/15/2024-11/14/2025	\$1,614,000.00	\$408,000.00	\$112,500.00	\$2,134,500.00
Option Year 2	11/15/2025-11/14/2026	\$1,614,000.00	\$408,000.00	\$900,000.00	\$2,922,000.00
Option Year 3	11/15/2026-11/14/2027	\$1,614,000.00	\$408,000.00	\$900,000.00	\$2,922,000.00
Option Year 4	11/15/2027-11/14/2028	\$1,614,000.00	\$408,000.00	\$900,000.00	\$2,922,000.00
TOTALS		\$8,070,000.00	\$2,522,000.00	\$2,812,500.00	\$13,404,500.00



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	Period of Performance	Initial Contract Storage	Prior Modification Storage Increases	Proposed Modification Storage (Optional)	Cumulative Total (Inclusive of Options)
Base Period	11/15/2023-11/14/2024	56 TB	38 TB	-	94 TB
Option Year 1	11/15/2024-11/14/2025	56 TB	14 TB	30 TB	100 TB
Option Year 2	11/15/2025-11/14/2026	56 TB	14 TB	30 TB	100 TB
Option Year 3	11/15/2026-11/14/2027	56 TB	14 TB	30 TB	100 TB
Option Year 4	11/15/2027-11/14/2028	56 TB	14 TB	30 TB	100 TB

Note: The prior modification only anticipated 24 TB of additional optional storage during the base year and 14 TB in the option years. Accordingly, any additional optional storage beyond the 14 TB in the option years will be supported by the 30 TB of this proposed modification.

4. Authority and supporting rationale and a demonstration of the proposed contractor's unique qualifications to provide the required supply or service.

Authority:

Limiting sources pursuant to FAR 8.405-6(a)(1)(i).

- ☒ 8.405-6(a)(1)(i)(B) Only one source is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized.

Rationale:

ICE/OAQ intends to add optional CLINs for Casepoint storage for the eDiscovery (eDS) Software as a Service (SaaS) requirement through the Multiple Award Schedule Program under the authority of 41 U.S.C. 152(3), Competitive Procedures, and 40 U.S.C. 501, Services for Executive Agencies pursuant to the authority selected above.

OPLA must have additional storage available to comply with court-mandated discovery obligations and federal litigation requirements. Current storage limits have already been exceeded due to a sharp rise in enforcement actions and litigation, and this trend is only increasing. Without this storage expansion, OPLA risks missing court-ordered deadlines, which could lead to sanctions, adverse rulings, or even case dismissals. Expanding storage now is not just a precaution, rather it's a critical, proactive step to ensure OPLA can meet legal obligations without disruption and continue supporting enforcement efforts effectively. This work is mission critical.

Casepoint, LLC is the only company capable of providing the additional storage needed under the existing SaaS solution. Presently, to increase active storage capacity, ICE has consistently transferred ongoing litigated cases to a lower tier storage (nearline storage) and freed up additional active storage. Storage solutions from another company are not compatible with Casepoint's existing solution and present an



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unacceptable level of risk. Storage solutions from a different vendor would require reducing and/or moving these capacity thresholds and perhaps require offloading of cases; essentially a process of removing the cases from the platform and storing them somewhere else like portable media or on file servers that are not associated with the current eDiscovery platform. The significant risk associated with this process is that the sudden need to review documents in any of these offloaded cases will necessitate a re-activation of the case that would take up to several days depending on the volume of data in each case. This would have a significant adverse impact on the timelines for review and production of data in response to new policies. Moving active cases to alternative storage isn't a realistic solution as it would create unnecessary delays and complications in retrieving essential records, potentially weakening legal arguments. Courts have consistently held parties accountable for failing to produce records on time. ICE must be able to act quickly or face serious legal and operational consequences. Caspoint, LLC is uniquely qualified to continue providing these services to OPLA on an uninterrupted basis. Caspoint meets the FedRamp certification requirements in a SaaS environment and is already working under an Authority to Operate (ATO) with ICE.

In order to realistically use another vendor's storage solution, ICE would require an entirely new solution/platform because other storage solutions are not compatible with the existing Caspoint platform. Issuing a new solicitation and seeking a new awardee and solution would result in a substantial duplication of cost, effort, and time that is not be expected to be recouped through competition. This includes administrative costs inherent in the solicitation, award and administration of two separate agreements, costs for new licenses, and labor costs for individuals moving cases between storage methods. A new procurement process would not address the immediate need for additional storage, as the timelines required to recompet this requirement and implement a new solution will take 1-2 years to have a new system up and running. This includes the time necessary to process a full recompet, and the time required for data migration and approval of a new ATO. The migration of data (i.e., workspaces and litigation holds) from the OPLA legacy system to the current platform on the current contract required a substantial amount of effort from ICE and the current vendor; several hundred workspaces were migrated and took approximately four months. There is also the risk of data loss when migrating to a new system. In addition, a new award will require a new ATO security process; ATO is a process aimed at minimizing and managing risk responsibility. The ATO process could take from six to fifteen months or longer, depending on many factors. The implementation of a new system would also necessitate multiple training sessions to acquaint users with the platform, enabling them to effectively navigate the user interface and utilize its new features.

ICE considered using future-year ceiling allocations to accommodate the current storage needs and recompeting this requirement early. ICE will take efforts to proceed with starting this process as soon as possible and will also be leaving all option periods in the current task order to allow for contingencies and unforeseen delays. If a new award is issued ICE retains the ability to not exercise the final option period if a new



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solutions is available earlier than expected. Litigation and enforcement actions are inherently unpredictable and often shifting due to external factors beyond the OPLA's control. If ICE/OAQ were to reduce the period of performance to make room for increased storage now, there is programmatic risk of running out of critical storage capacity at a time when it's most needed. Unlike standard procurements, this is not something ICE can delay or adjust easily as federal discovery laws require long-term data retention. Failing to plan for sustained accessibility could lead to data loss, retrieval delays, or even noncompliance with court orders. The original contract ceiling was based on projections that have already proven too low due to an unexpected surge in enforcement activity and administration priority changes. Shifting ceiling from future years does not solve the problem. Due to the extended timelines required to procure and implement a new solution noted above, ending the period of performance early would create a potentially bigger issue later that could require emergency action when a competitive procurement may not be feasible.

For these reasons, Casepoint, LLC is uniquely capable of providing the required additional storage.

5. Determination by the ordering activity contracting officer that the anticipated order represents the best value consistent with FAR 8.404(d).

The administering agency, GSA, has already negotiated fair and reasonable pricing. In addition, the competitive environment during task order solicitation induced further discounts and the resulting price was again determined fair and reasonable by the ordering officer. The modification will pursue pricing which is consistent with the pricing extended on the underlying GSA contract and task order, as awarded, to ensure the price for the modification is fair and reasonable. The discount rate received on this task order is [REDACTED] off the GSA price list for active storage and [REDACTED] off the GSA price list for the inactive storage. These discounted rates are also provided for the current request.

6. A description of the market research conducted among schedule holders and the results, or a statement of the reason market research was not conducted.

Market research was conducted prior to the award of the task order, which was conducted within a reasonable time frame – July 2022 to August 2023, ICE OAQ is not seeking to issue an award to a new vendor to increase storage as Casepoint, LLC is the only source uniquely capable of providing the required additional storage as discussed above.

7. Any other facts supporting the limited-sources justification. Additional facts may be stated in this section. If there are no additional facts, you must state that here.

There are no additional facts that support this justification.



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- 8. A statement of actions, if any, the agency may take to remove or overcome any barriers that led to restricted consideration (i.e., limited-sources) before any subsequent acquisition for the supplies or services is made.**

Future new requirements for eDiscovery Software as a Service (SaaS) storage will be procured using competitive procedures.

- 9. DHS intends to post this requirement on sam.gov pursuant to FAR 8.405-6(a)(2).**

10. Technical/Requirements Personnel Certification.

Pursuant to FAR 8.405-6(c)(2)(x), I certify that this requirement meets the Government's minimum need and that the supporting data, which form a basis for the Limited-Sources Justification, are accurate and complete.

[Redacted Signature]

Technical Representative

Date

11. Contracting Officer Certification

Pursuant to FAR 8.405-6(c)(2)(ix) and (xi), I certify that the Limited-Sources Justification is accurate and complete to the best of my knowledge and belief, and I determine that the circumstance identified in Section 4 applies.

[Redacted Signature]

Contracting Officer

Date

12. Approval.

Pursuant to FAR 8.405-6(c)(2)(xi), I hereby determine the circumstance identified in Section 4 applies.

[Redacted Signature]

Competition Advocate

Date